

NOLO California Quick Guide: Renters' Rights

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This guide cuts through the legal jargon to give California renters the practical knowledge they need to protect themselves.

Rent increases are capped statewide. After July 1, 2024, your landlord can only raise your rent by 5% plus the regional Consumer Price Index (CPI), with a hard cap of 10% total per year. This applies even if your lease says otherwise. If you're in a city with local rent control—like San Francisco, Los Angeles, or Oakland—you may have even stronger limits.

Security deposits must be returned within 21 days after you move out. Your landlord must send you a written explanation of any deductions, along with copies of receipts for repairs over \$125. You have the right to request a walk-through inspection before moving out to fix issues and avoid deductions.

If your landlord refuses to make major repairs—like fixing a broken heater in winter or addressing a sewage backup—you have options. First, send a written repair request. If they ignore it, you may be able to withhold rent (place it in a separate bank account) or “repair and deduct” (fix it yourself and subtract the cost from rent, up to one month's rent). But use these remedies carefully—missteps can lead to eviction.

Eviction is never instant. Your landlord must have a legal reason (“just cause”) and follow court procedures. Common just causes include nonpayment of rent, violating lease terms, or creating a nuisance. Owner move-ins and substantial renovations are also allowed in some cases, but landlords must pay relocation assistance in rent-controlled cities.

Bed bug infestations are a shared responsibility. If the bugs came from another unit or common area, your landlord must pay for extermination. If you introduced them, you may be responsible—but they still can't evict you solely for having bed bugs.

Retaliation is illegal. If your landlord raises your rent, cuts services, or threatens eviction within 180 days of you asserting your rights (like calling the health department), the law presumes it's retaliation.

For free or low-cost help, visit [LawHelpCA.org](https://www.lawhelpca.org), contact your local legal aid office, or join a tenant union. Knowledge is your best defense—stay informed and stay housed.